by force of the 6th article of the above treaty? We think it was.

Was it meant to be contended, that the plaintiffs are not within the protection of this article, because they are not *persons* who could take part in the war, or who can be considered by the Court as British subjects? If this were to be admitted, it would seem to follow, that a corporation cannot lose its title to real estate, upon the ground of alienage, since, in its civil capacity, it cannot be said to be born under the allegiance of any sovereign. But this would be to take a very incorrect view of the subject. In the case of *The Bank of the United States* v. *Deveaux*, (5 *Cranch's Rep.* 86.) it was stated by the Court, that a corporation, considered as a mere legal entity, is not a citizen, and, therefore, could not, as such, sue in the Courts of the United States, unless the rights of the members of it, in this respect, could be exercised in their corporate name. It was added, that the name of the corporation could not be an alien or a citizen; but the corporation may be the one or the other, and the controversy is, in fact, between those persons and the opposing party.

And its title is confirmed by the treaty of 1794.

But even if it were admitted that the plaintiffs are not within the protection of the treaty, it would not follow, that their right to hold the land in question was devested by the act of 1794, and became vested in the town of New-Haven. At the time when this law was enacted, the plaintiffs, though aliens, had a complete, though defeasible, title to the land, of which they could not be de-